

1607
Oct. 14

kept possession by force, and he had in the house a 'drumme, caliuier, crossbowe, powder & shotte, 2 holberds, 6 prongs & diuerse staues,' but he did nothing but keep possession for five monthes. And he practised, by the advice of Chambers, another defendant, to 'stirre auncient title.'

Sentence
[p. 311]

And for these offences he was fined £100 and Chambers £200, for *plus peccat autor* [sic] *quam actor*. The other defendants, being servants of Sherston's, were fined £20 apiece, the Master to pay this by the course of the Court. And imprisonment [for them all] as of course.

1607
Oct. 16

In Camera Stellata, coram Consilio ibidem, Veneris, 16 Octobr. 1607.¹

SOL.-GEN.
v.
LOUCHE and
HOLLAND
—
Building
contrary to
proclama-
tion

Sir Francis Bacon, now the King's Solicitor,² informed *ore tenus* against one Louche, 'a kooke, & Roberte Hollande, a scryuener at temple barre,' on their confession, for erecting new buildings contrary to two several proclamations and in contempt of them; the one 22 Elizabeth, the other 4 James, and another published this day. (Coke, Chief Justice: *Vbi non est lex ibi non est transgressio*.) 'these buyldinges are againste the common lawe & the kinge's prerogative. *Quaere* the proclamation before in this book, where the particular mischiefs are set down.'³ 'We had neede of a lawe againste Inmates in London & outmates in the Cuntrye; for depopulations haue destroyed & decayed all other good townes, & seruantes for husbandrye are not now to be gotten.

'In buyldinge 3 thinges considerable, 1. *necessitas*, 2. *salubritas*, 3. *ornatus*.

'*Frequens et generalis contemptus est rebellionis prodromus*. In o^r punishement therefore wee must not looke backwarde. Lameche's punishem^{te} was tenne times to Cain's. *Interest reipublicae ne quis re sua male utatur*; & as it is the kinge's prerogative, so it is the auncient lawe

¹ Eight Councillors and Judges were present.

² He was appointed Solicitor-General June 25th, 1607.

³ This seems to refer to the case of Savage and others, *ante*, p. 318; in the MS. there is a blank page left, apparently for the Proclamation.